

25NWCV04564 25NWCV04564

County: los-angeles

Division: Civil Law and Motion

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LUIS ELIZARDO v. ADAM WEST, ET AL.

CASE NO.: 25NWCV04564

HEARING: 09/11/2026 @

9:30 AM

#11

TENTATIVE ORDER

I.

Defendant Adam West's motion for leave to file a cross-complaint is GRANTED.

II.

Defendant is ORDERED to file and serve the proposed cross-complaint attached to the moving papers within 5 days of this Order.

Moving party to give notice.

Defendant Adam West (Defendant) moves for leave to file a cross-complaint against Plaintiff Luis Elizardo (Plaintiff).

Background

On December 23, 2025, Plaintiff filed this personal injury

action against Defendants Adam West, Brenda Maldonado, and Does 1 through 25. The form complaint alleges that on January 8, 2025, at or about Whittier Blvd. and Philadelphia St., Whittier, CA 90606, Plaintiff sustained injuries after a vehicle driven by West, and negligently entrusted to West by Maldonado, collided into Plaintiff's vehicle. The complaint asserts two causes of action: (1) motor vehicle and (2) general negligence.

Legal Standard

Code of Civil Procedure section 428.10 provides: "A party against whom a cause of action has been asserted in a complaint or cross-complaint may file a cross-complaint setting forth either or both of the following:"

(a) Any cause of action he has against any of the parties who filed the complaint or cross-complaint against him.

(b) Any cause of action he has against a person alleged to be liable thereon, whether or not such person is already a party to the action, if the cause of action asserted in his cross-complaint (1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him.

"A party who fails to plead a cause of action subject to the requirements of this article, whether through oversight, inadvertence, mistake, neglect, or other cause, may apply to the court for leave to amend his pleading, or to file a cross-complaint, to assert such cause at any time during the course of the action. The court, after notice to the adverse party, shall grant, upon such terms as may be just to the parties, leave to amend the pleading, or to file the cross-complaint, to assert such cause if the party who failed to plead the cause acted in good faith. This subdivision shall be liberally construed to avoid forfeiture of causes of action." (Code Civ. Proc., § 426.50.)

Discussion

Defendant moves for leave to file a cross-complaint. This

motion is unopposed.

Defendant argues that the proposed cross-complaint arises directly out of the same transaction and occurrence as alleged in Plaintiff's complaint. Defendant argues that the proposed cross-complaint seeks to recover for property damage due to Plaintiff's alleged negligence arising out of the same motor vehicle collision.

Defendant contends that its failure to include this proposed property damage claim is not the result of bad faith or tactical delay, but rather due to inadvertence and the timing of confirming the full extent of damages. (Yun Decl., ¶ 6.) Defendant provides a copy of the proposed cross-complaint. (Yun Decl., ¶ 7, Exh. C.)

Upon review of Defendant's moving papers and proposed cross-complaint, the Court finds that the allegations in the proposed cross-complaint arise out of the same transaction and occurrence as Plaintiff's complaint. Moreover, the Court notes that this motion is unopposed and Defendant shows that no party will suffer substantial prejudice and the interests of justice support granting leave.

Accordingly, Defendant's motion for leave to file a cross-complaint is GRANTED.

Defendant is ORDERED to file and serve the proposed cross-complaint attached to the moving papers within 5 days of this Order.